

25NNCV07081 25NNCV07081

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Case Number: 25NNCV07081 Hearing Date: August 7, 2026 Dept: D

TENTATIVE RULING

Calendar: 8

Date: August 7, 2026

Case No: 25NNCV07081 Trial Date: Not yet set

Case Name: Paklina v. Swisher, et al.

MOTION TO SET ASIDE JUDGMENT; MOTION TO ENFORCE SETTLEMENT AGREEMENT

[CCP §§ 473 subd. (b); 664.6]

Moving Party: Plaintiff, Valerie Paklina / Defendants, Penelope G. Swisher and Nathan Swisher

Responding Party: Defendants, Penelope G. Swisher and Nathan Swisher / Plaintiff, Valerie Paklina

RELIEF REQUESTED:

An order setting aside the CCP section 998 offers to compromise.

An order enforcing Defendants' acceptances of Plaintiff's CCP section 998 offer to compromise.

CAUSES OF ACTION: from Form Complaint

1) Motor Vehicle

2) General Negligence

SUMMARY OF FACTS:

This action arises from an alleged motor vehicle collision. On March 10, 2024, Plaintiff Valeriya Paklina ("Plaintiff") alleges that she was traveling southbound on Laurel Canyon Blvd., in Studio City, CA and defendant Penelope G. Swisher ("Penelope") was traveling westbound on Woodbridge Street. Plaintiff alleges that Penelope failed to stop at the stop sign at the intersection and collided into Plaintiff's vehicle at a high rate of speed, causing the collision.

ANALYSIS:

"If parties to pending litigation stipulate, in a writing signed by the parties outside of the presence of the court or orally before the court, for settlement of the case, or part thereof, the court, upon motion, may enter judgment pursuant to the terms of the settlement. If requested by the parties, the court may retain jurisdiction over the parties to enforce the settlement until performance in full of the terms of the settlement." (CCP, § 664.6, subd. (a).)

Strict compliance with the statutory requirements is necessary before a court can enforce a settlement agreement under this statute. (Sully-Miller Contracting Co. v. Gledson/Cashman Construction, Inc. (2002) 103 Cal.App.4th 30, 37.) The party seeking to enforce a settlement "must first establish the agreement at issue was set forth 'in a writing signed by the parties' (§ 664.6) or was made orally before the court." (Harris v. Rudin, Richman & Appel (1999) 74 Cal.App.4th 299, 304.)

"A motion for relief under section 473 is addressed to the sound discretion of the trial court and an appellate court will not interfere unless there is a clear showing of an abuse. [Citation.] The statute is remedial and should be liberally applied to carry out the policy of permitting trial on the merits, but the moving party has the burden of showing good cause. [Citations.]" (David v. Thayer (1980) 133 Cal.App.3d 892, 904-905.)

The discretionary provision of section 473, subdivision (b), states that "[t]he court may, upon any terms as may be just, relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect." (CCP, § 473, subd. (b).)

On July 28, 2025, prior to commencing this action, Plaintiff submitted a policy demand letter to Defendants' insurance company for "your insured's total available liability insurance policy limits." (Cox Decl., Ex. A.) The insurance company did not tender Defendants' policy limits, and the parties reached an impasse in settlement negotiations. (Haroutounian Decl., ¶ 5.) Plaintiff subsequently filed this action on October 6, 2025, against defendant Penelope Swisher, the driver of the vehicle, and defendant Nathan Swisher, the registered owner of the vehicle. (Haroutounian Decl., ¶ 5.) Defendants served their Answer on February 5, 2026.

Plaintiff's counsel asserts that on February 26, 2026, he verbally instructed his paralegal to prepare two section 998 offers, one in the amount of \$250,000 as to Penelope and one in the amount of \$15,000 as to Nathan. (Haroutounian Decl., ¶ 7.) The paralegal asserts that she inadvertently prepared the 998 offer to Penelope in the amount of \$100,000. (Meliksetyan Decl., ¶ 3.) Plaintiff's counsel states that he did not review the offers before they were served. (Haroutounian Decl., ¶ 7.) On February 27, 2026, Plaintiff served Defendants with the section 998 offers, signed by Plaintiff's counsel, in the amount of \$100,000 as to Penelope and \$15,000 as to Nathan. (Cox Decl., Exs. B-C.) On March 25, 2026, Defendants served acceptances of both offers. (Haroutounian Decl., ¶ 9.) A few hours after receiving the signed acceptances, Plaintiff served notices that she was withdrawing both 998 offers because the offers had been made in the wrong amounts. (Haroutounian Decl., ¶¶ 10-11.) No discovery responses or documents have been exchanged, and no depositions have been taken. (Haroutounian Decl., ¶ 9; Cox Decl., ¶ 7.)

Plaintiff argues that the 998 offers should be set aside on the grounds of clerical error and mistake. (Haroutounian Decl., ¶ 5.) Plaintiff's counsel asserts that he "was never authorized to settle this case below Defendants' policy limits, let alone for

\$115,000.00 globally.” (Haroutounian Decl., ¶ 7.) Counsel further asserts that “no settlement discussions of any kind had taken place between Plaintiff’s and Defendants’ counsel.” (Haroutounian Decl., ¶ 7.) Plaintiff contends that the paralegal inadvertently preparing the 998 offer in the amount of \$100,000, rather than the intended amount of \$250,000, constitutes a clerical mistake warranting relief under CCP section 473, subdivision (b), akin to the circumstances in *Zamora v. Clayborn Contracting Group, Inc.* (2002) 28 Cal.4th 249.

In *Zamora*, the California Supreme Court held that the trial court properly vacated a judgment entered under section 998 pursuant to a section 473 motion. (*Zamora*, supra, 28 Cal.4th at pp. 260-261.) The Supreme Court found that the 998 offer contained a clerical mistake where the word “against” was erroneously substituted for the phrase “in favor of.” (Id., at pp. 252, 259.) The Court in *Zamora* found that the defendant had reason to suspect that a mistake had been made and took unfair advantage. (Id., at p. 259.) There, plaintiff submitted a 998 offer offering judgment against plaintiff in the amount of \$149,999, yet plaintiff’s complaint sought over \$140,000 in damages, plaintiff had never offered to settle for less than \$150,000 previously, and defendant knew that plaintiff was having financial difficulties. (Id., at p. 259.) In addition, the Court noted that defendant’s rush to get approval of the settlement and abrupt cancellation of depositions and hearings on pending motions with no notice to the parties involved cast further doubt on defendant’s claim of innocence. (Id., at p. 259.)

In contrast, Defendants here argue that serving Penelope with a 998 offer for \$100,000 was not a simple clerical error. Defendants argue that counsel’s failure to read the settlement offer before signing it is not a simple clerical error or a mistake that a reasonably prudent person would have made. (Opp., p. 7:6-22.) Moreover, Defendants argue that they had no reason to think that the 998 offer here was a mistake. No discovery had been exchanged, and Plaintiff offers no basis for her “information and belief” that Defendants’ policy limits were higher than the 998 offer served on Penelope. (Opp., p. 8:11.) In addition, unlike the defendant in *Zamora*, Defendants here did not rush to accept the offer. (Opp., p. 8:12.) Defendants argue that the facts here are more similar to the circumstances in *Pazderka v. Caballeros Dimas Alang, Inc.* (1998) 62 Cal.App.4th 658.

In *Pazderka*, the Court of Appeal held that “professional shortcomings” do not justify relief under section 473. (*Pazderka*, supra, 62 Cal.App.4th at p. 672.) There, a party sought to vacate a judgment entered pursuant to a 998 offer in which counsel had mistakenly omitted a provision on attorney’s fees. (Id., at pp. 663-665.) The Court of Appeal held that the failure to make provision for attorney fees and costs in the section 998 offer was “the type of mistake that both the Supreme Court and we have held should not be provided relief under section 473,” because it was not the type of mistake “ordinarily made by a person with no special training or skill.” (Id. at p. 671.) The Court of Appeal concluded that “[p]ermitting the court to unravel [accepted section 998 agreements] based on mistake or evidence of no intent [...] would contravene the policy objectives of section 998.” (Id. at p. 671.)

The Court agrees that the mistake here was not a clerical one. Unlike in *Zamora*, where an incorrect phrase was inadvertently substituted for another, Plaintiff’s counsel consciously drafted a 998 offer stating a settlement amount of \$100,000. Even accepting Plaintiff’s explanation that counsel’s paralegal confused this settlement offer with that for another case, counsel’s signature is affixed directly below the stated settlement amount. Attorney negligence is not a basis for relief under section 473. (*Pazderka*, supra, 62 Cal.App.4th at p. 672.) Offering to settle a case for the wrong amount is not the type of mistake that could ordinarily be made by a person with no special skill or training. (Ibid.) Offering a particular amount in settlement is squarely within the responsibilities of counsel. Further, counsel did not discover the mistake until approximately one month after the 998 offer was served, and only after Defendants had accepted the offers, further underscoring that the mistake resulted from counsel’s failure to competently perform his professional responsibilities, not from a clerical error.

Moreover, Plaintiff’s argument that counsel “was never authorized to settle this case below Defendants’ policy limits” does not compel a different result (Mot., p. 13:1-2.) Plaintiff offers no evidentiary basis for her assertion, made only on “information and belief,” that Defendants’ policy limits are \$250,000. At the time the 998 offer was served, no discovery had been exchanged, and Plaintiff identifies no facts demonstrating that Plaintiff had expressly limited counsel’s settlement authority to amounts at or above \$250,000. Accordingly, the record does not support Plaintiff’s contention that the \$100,000 offer was “clearly not authorized by [the] client.” (*Zamora*, supra, 28 Cal.4th at p. 260) A “valid compromise agreement has many attributes of a judgment, and in the absence of a showing of fraud or undue influence is decisive of the rights of the parties thereto and operates as a bar to the reopening of the original controversy.” (*Pazderka*, supra, 62 Cal.App.4th at p. 672.)

Lastly, it is unclear on what basis Plaintiff seeks to vacate the 998 offer as to Nathan. Plaintiff asserts that counsel instructed his paralegal to prepare a 998 offer to Nathan in the amount of \$15,000, and that the paralegal did so. (Haroutounian Decl., ¶ 7.) Thus, unlike the offer made to Penelope, Plaintiff does not contend that the settlement amount offered to, and ultimately accepted by, Nathan was a mistake.

Accordingly, given the nature of the error and the policy favoring 998 compromise agreements, Plaintiff's motion to set aside the judgment is DENIED.

Based on the ruling above, Defendants' motion to enforce Defendants' acceptance of Plaintiff's CCP 998 offers pursuant to CCP 664.6 is MOOT.

RULING:

Plaintiff's Motion to Set Aside/Vacate Judgment is DENIED.

Defendants' Motion for Order Enforcing Defendants' Acceptance of Plaintiff's Code of Civil Procedure Section 998 Offers Pursuant to CCP 664.6 is MOOT.

DEPARTMENT D IS CONTINUING TO CONDUCT AND ENCOURAGE

VIDEO APPEARANCES

If you wish to appear remotely on LACourtConnect, you may register by visiting www.lacourt.ca.gov to schedule a remote appearance. Please note that LACourtConnect offers free audio and video appearances. Department D is now requiring either live or VIDEO appearances, not audio appearances.